

IN THE DISTRICT COURT OF TRAVIS COUNTY
STATE OF TEXAS
390th JUDICIAL DISTRICT

SEARCH AND SEIZURE WARRANT

Warrant No. TC-2024-SW-8821

Issuing Court: 390th District Court, Travis County, Texas
Presiding Judge: Hon. Robert J. Holloway, District Judge
Requesting Agency: Travis County Sheriff's Office, Digital Crimes Unit
Lead Investigator: Detective M. Vasquez, Badge #4471
Prosecutor of Record: ADA Christine Okafor, Travis County DA's Office
Date of Issue: April 3, 2024
Time of Issue: 2:47 PM Central Time
Execution Deadline: April 17, 2024 (14 days — NOTE: not specified in warrant body)
Return Date: Not specified in warrant

TO: Any Peace Officer of the State of Texas and/or any Authorized Agent of the Travis County Sheriff's Office:

Whereas, the affidavit of Detective M. Vasquez, a sworn peace officer of Travis County, Texas, having been presented to this Court and the Court having found that probable cause exists for the issuance of this Search and Seizure Warrant:

YOU ARE HEREBY COMMANDED TO SEARCH:

The servers, computer systems, databases, cloud storage systems, backup systems, archived data, and all digital infrastructure, whether physical or virtual, operated, managed, hosted, or controlled by:

Target Entity:	NexaCloud Technologies, Inc.
Registered Address:	525 Market Street, Suite 3200, San Francisco, CA 94105
Registered Agent:	CT Corporation System, 1999 Bryan Street, Dallas, TX 75201
Entity Type:	Delaware Corporation, registered to do business in Texas

AND TO SEIZE:

All records, data, communications, messages, files, documents, photographs, videos, location data, GPS coordinates, IP addresses, login records, account information, financial records, transaction histories, metadata, and any other information of any kind whatsoever related to any users, accounts, or devices associated with or located in Travis County, Texas at any time between January 1, 2023 and the present

date of this warrant.

This warrant is issued pursuant to Texas Code of Criminal Procedure, Article 18.02. A supporting affidavit establishing probable cause is attached hereto as Exhibit A and incorporated herein by reference. The items to be searched and seized are further described in Attachment A and Attachment B respectively.

Hon. Robert J. Holloway
Judge, 390th District Court
Travis County Courthouse
1000 Guadalupe Street
Austin, TX 78701

Date: April 3, 2024, 2:47 PM CT
Travis County, Texas

**IN THE DISTRICT COURT OF TRAVIS COUNTY
STATE OF TEXAS — 390th JUDICIAL DISTRICT**

EXHIBIT A
**AFFIDAVIT IN SUPPORT OF APPLICATION FOR SEARCH AND
SEIZURE WARRANT**

Warrant No. TC-2024-SW-8821

I. INTRODUCTION AND AFFIANT BACKGROUND

I, Detective Marco A. Vasquez, Badge #4471, being duly sworn, depose and state the following under penalty of perjury:

1. I am a sworn peace officer employed by the Travis County Sheriff's Office (TCSO), Austin, Texas, and have been so employed for eleven (11) years. I am currently assigned to the Digital Crimes Unit (DCU), where I have served for the past four (4) years.
2. During my tenure with the Digital Crimes Unit, I have received specialized training in digital forensics, electronic evidence collection, cybercrime investigation, and the legal frameworks governing the compelled disclosure of electronic records, including the Texas Code of Criminal Procedure and applicable federal statutes.
3. I have participated in over one hundred and forty (140) investigations involving digital evidence, and have applied for and received numerous search warrants directing technology companies to produce electronic records. I have testified as an expert witness in digital evidence matters in Travis County District Court on seven (7) separate occasions.
4. The facts set forth in this affidavit are based upon my personal knowledge, my review of investigative reports and records, information provided to me by other law enforcement officers and civilians, and my training and experience as a law enforcement officer. Because this affidavit is submitted for the limited purpose of establishing probable cause, I have not included every fact known to me concerning this investigation.

II. PURPOSE OF THIS AFFIDAVIT

5. I make this affidavit in support of an application for a search and seizure warrant directing NexaCloud Technologies, Inc. (hereinafter 'NexaCloud'), a cloud-based technology platform operating in the State of Texas, to produce certain electronic records and data as more fully described in Attachment B to the proposed warrant.
6. As set forth herein, I believe there is probable cause to conclude that the records and data sought contain evidence, fruits, and instrumentalities of criminal violations including but not limited to: organized criminal activity (Texas Penal Code § 71.02), money laundering (Texas Penal Code § 34.02), and wire fraud in violation of 18 U.S.C. § 1343.

III. BACKGROUND ON NEXACLOUD TECHNOLOGIES

7. NexaCloud Technologies, Inc. is a Delaware corporation with its principal place of business at 525 Market Street, Suite 3200, San Francisco, California 94105. NexaCloud is registered to conduct business in the State of Texas and has a registered agent located at 1999 Bryan Street, Dallas, Texas 75201.
8. NexaCloud operates a cloud-based platform that provides file storage, messaging, financial transaction processing, and social networking services to approximately 4.2 million registered users in the United States, including an estimated 340,000 users with registered addresses in the State of Texas.
9. NexaCloud maintains records associated with user accounts including but not limited to: subscriber identification information, IP address logs, message content, file uploads and downloads, financial transaction records, and device information. These records are stored on NexaCloud's servers and are accessible to NexaCloud's personnel.
10. Based on my training and experience, I know that individuals engaged in criminal activity frequently use cloud-based platforms such as NexaCloud to communicate with co-conspirators, store records of criminal transactions, transfer funds, and coordinate criminal enterprises. I further know that such individuals frequently use false or misleading account information in an attempt to conceal their identities.

IV. FACTS ESTABLISHING PROBABLE CAUSE

11. In November 2023, the Travis County Sheriff's Office received a complaint from a local financial institution, Capital Austin Bank (CAB), reporting a pattern of suspicious transactions linked to accounts held by individuals residing in Travis County. CAB's fraud department identified approximately \$2.3 million in transactions occurring between January 2023 and October 2023 that exhibited characteristics consistent with structured money laundering.
12. A review of the suspicious activity reports (SARs) filed by CAB revealed that a significant portion of the flagged transactions were initiated via mobile devices and appeared to originate from IP addresses registered to NexaCloud Technologies. Specifically, CAB's records showed that forty-seven (47) of the flagged transactions included reference codes consistent with NexaCloud's internal transaction identifier format.
13. In December 2023, Detective Vasquez submitted a formal legal process request to NexaCloud Technologies pursuant to 18 U.S.C. § 2703(c) requesting basic subscriber information for the account holders associated with the identified transaction reference codes. NexaCloud responded on January 8, 2024, producing subscriber information for forty-one (41) of the forty-seven (47) requested accounts. NexaCloud indicated that the remaining six (6) accounts could not be located in their system.
14. A review of the subscriber information produced by NexaCloud revealed that thirty-four (34) of the forty-one (41) identified accounts listed mailing addresses in Travis County, Texas. Of these accounts, nineteen (19) listed the same physical address — 4821 Research Boulevard, Suite 110, Austin, TX 78759 — which is registered to a limited liability company called Lone Star Digital

Ventures LLC.

15. A search of Texas Secretary of State records revealed that Lone Star Digital Ventures LLC was incorporated on October 14, 2022, and lists a registered agent but no identified officers, directors, or managers. The company has no publicly listed phone number, website, or business presence. A physical inspection of the listed address on February 14, 2024 revealed a vacant commercial office suite with no signage or occupants.
16. Based on the foregoing, and on my training and experience investigating financial crimes and digital fraud, I believe that NexaCloud Technologies maintains records that constitute evidence, fruits, and instrumentalities of the criminal offenses identified in paragraph 6 above. I further believe that the records of all users located in Travis County are necessary to fully investigate the scope of the criminal enterprise.

V. NECESSITY AND SCOPE OF WARRANT

17. Based on the foregoing facts, I respectfully request that this Court issue a Search and Seizure Warrant directing NexaCloud Technologies, Inc. to produce all records described in Attachment B associated with any users or accounts located in Travis County, Texas between January 1, 2023 and the present date.
18. I request records for all Travis County users rather than only the specifically identified accounts because, based on my training and experience, co-conspirators in financial crimes frequently create multiple accounts under different identities to obscure their activities, and the full scope of the criminal network can only be identified through a comprehensive review of all potentially associated accounts.
19. I further request all categories of records described in Attachment B, including the contents of electronic communications, because financial crimes of this nature frequently involve coordinated communications between co-conspirators that can only be identified through a review of message content.

VI. AFFIANT'S ATTESTATION

I swear under penalty of perjury that the foregoing is true and correct to the best of my knowledge and belief, and that the facts stated herein establish probable cause for the issuance of the requested Search and Seizure Warrant.

Detective Marco A. Vasquez

Badge #4471

Digital Crimes Unit

Travis County Sheriff's Office

Date: April 3, 2024

Subscribed and sworn before me

this 3rd day of April, 2024

Hon. Robert J. Holloway

Judge, 390th District Court

**IN THE DISTRICT COURT OF TRAVIS COUNTY
STATE OF TEXAS — 390th JUDICIAL DISTRICT**

**ATTACHMENT A
DESCRIPTION OF PROPERTY TO BE SEARCHED**

Warrant No. TC-2024-SW-8821

This warrant authorizes the search of the following property, systems, and infrastructure operated, owned, managed, or controlled by NexaCloud Technologies, Inc.:

A.1 PHYSICAL INFRASTRUCTURE:

- A.1.1 All servers, server racks, storage arrays, and computing hardware located at or associated with NexaCloud's primary data centers
- A.1.2 All backup and disaster recovery systems, whether on-site or off-site
- A.1.3 Any co-location facilities where NexaCloud stores or processes data
- A.1.4 All network infrastructure including routers, switches, and load balancers that process NexaCloud user data

A.2 CLOUD AND VIRTUAL INFRASTRUCTURE:

- A.2.1 All cloud computing instances, virtual machines, and containerized environments used to host NexaCloud services
- A.2.2 All cloud storage buckets, databases, and data warehouses, whether hosted on Amazon Web Services, Google Cloud Platform, Microsoft Azure, or any other cloud provider
- A.2.3 All content delivery network (CDN) nodes and edge computing resources associated with NexaCloud services
- A.2.4 All development, staging, and testing environments that contain or have contained user data

A.3 DATA AND SOFTWARE SYSTEMS:

- A.3.1 All production databases containing user account information, transaction records, messaging data, and associated metadata
- A.3.2 All logging and analytics systems that record user activity, IP addresses, and behavioral data
- A.3.3 All backup copies of the foregoing, regardless of storage medium or location
- A.3.4 All administrative interfaces, dashboards, and internal tools that provide access to user data

NexaCloud Technologies, Inc. is authorized to produce the records and information described in Attachment B in lieu of permitting physical search of the infrastructure described above, provided that such production is complete and made in the format specified by the executing officer.

**IN THE DISTRICT COURT OF TRAVIS COUNTY
STATE OF TEXAS — 390th JUDICIAL DISTRICT**

**ATTACHMENT B
DESCRIPTION OF ITEMS TO BE SEIZED**

Warrant No. TC-2024-SW-8821

NexaCloud Technologies, Inc. is hereby commanded to produce all of the following records and information pertaining to any user, account, or device associated with or located in Travis County, Texas, for the time period January 1, 2023 through April 3, 2024 (date of this warrant), to the extent that such records are within NexaCloud's possession, custody, or control:

B.1 SUBSCRIBER AND ACCOUNT INFORMATION:

- B.1.1 Full legal name, usernames, display names, and any aliases associated with each account
- B.1.2 All email addresses linked to or associated with each account, including recovery addresses
- B.1.3 All physical mailing addresses, billing addresses, and shipping addresses on file
- B.1.4 All telephone numbers associated with each account
- B.1.5 Date and time of account creation and any subsequent account modifications
- B.1.6 Account status (active, suspended, deactivated, or deleted) and the dates of any status changes
- B.1.7 All government-issued identification documents submitted during account verification
- B.1.8 All payment methods on file, including credit card numbers (masked), bank account information, and payment processor identifiers
- B.1.9 All linked social media accounts or third-party authentication records

B.2 COMMUNICATIONS CONTENT:

NOTE: This section requests the contents of electronic communications. Under federal law (18 U.S.C. § 2703), the contents of stored electronic communications generally require a federal warrant supported by probable cause. The legal sufficiency of a state court warrant to compel disclosure of communication content from an out-of-state provider is subject to legal challenge.

- B.2.1 The content of all private messages, direct messages, group messages, and chat conversations sent or received by each account
- B.2.2 All emails sent, received, drafted, or deleted by each account
- B.2.3 All voice messages, voicemails, and audio recordings stored in each account
- B.2.4 All video messages and video recordings stored or transmitted through each account
- B.2.5 All posts, comments, replies, and public or private content published by each account

B.3 LOCATION AND NETWORK DATA:

B.3.1 All IP addresses used to access each account, including timestamps and geolocation data associated with each IP address

B.3.2 All GPS coordinates and location data associated with each account or device

B.3.3 All device identifiers including IMEI numbers, device IDs, and browser fingerprints

B.3.4 All records of Wi-Fi networks and cell towers associated with account access

B.4 FINANCIAL AND TRANSACTION RECORDS:

B.4.1 All financial transactions processed through or associated with each account, including amounts, dates, times, parties, and transaction identifiers

B.4.2 All records of funds transferred, received, or held in connection with each account

B.4.3 All cryptocurrency wallet addresses and transaction records associated with each account

B.4.4 All invoices, receipts, and financial statements associated with each account

B.5 FILES AND STORED CONTENT:

B.5.1 All files uploaded to, stored in, or shared through each account, including documents, spreadsheets, presentations, images, audio files, and video files

B.5.2 All metadata associated with the foregoing files including creation date, modification date, author information, and geolocation data embedded in files

B.5.3 All deleted files that remain recoverable from NexaCloud's systems

The foregoing records and information shall be produced in electronic format within fourteen (14) days of service of this warrant. Production shall be made to Detective M. Vasquez, Travis County Sheriff's Office Digital Crimes Unit, 5015 Airport Boulevard, Austin, TX 78751, or via secure electronic transmission as arranged with the executing officer.

COMPLIANCE ANALYST REVIEW — INTERNAL USE ONLY
RED FLAGS IDENTIFIED — DO NOT COMPLY WITHOUT SENIOR REVIEW

RED FLAG #1 — OVERBROAD SCOPE (Fourth Amendment Particularity Violation)

The warrant commands production of records for ALL users in Travis County with no specific suspect, account identifier, or individual named anywhere in the warrant. The affidavit identifies only 34 accounts of interest (paragraph 14) but the warrant requests records for an estimated 340,000 Texas users (paragraph 8). The Fourth Amendment requires warrants to particularly describe the persons or things to be seized. A warrant directed at all users of a geographic region without particularized probable cause is facially overbroad and subject to a motion to quash. RECOMMENDED ACTION: Do not comply. Refer to outside counsel.

RED FLAG #2 — STATE WARRANT SEEKING COMMUNICATION CONTENT (Federal Preemption)

Attachment B Section B.2 explicitly requests the contents of electronic communications including private messages, emails, and all stored content. Under the Electronic Communications Privacy Act (ECPA), 18 U.S.C. § 2703, the contents of stored electronic communications held by a third-party provider require a federal warrant supported by probable cause — not a state court order. Compliance with a state warrant for communication content may expose NexaCloud and ZGSS to civil liability under 18 U.S.C. § 2707. RECOMMENDED ACTION: Production of communication content per B.2 should be refused pending receipt of a proper federal warrant.

RED FLAG #3 — JURISDICTIONAL OVERREACH (Out-of-State Provider)

NexaCloud Technologies is a California corporation with no identified physical presence in Travis County, Texas. The warrant is issued by a Texas state court purporting to command a California company to produce records potentially stored in data centers across multiple states. Texas state courts have limited authority to compel out-of-state entities absent specific statutory authorization or the entity's voluntary submission to Texas jurisdiction. No federal process (e.g., a federal grand jury subpoena) has been issued to cure this jurisdictional defect. RECOMMENDED ACTION: Raise jurisdictional objection; seek federal process.

RED FLAG #4 — MISSING RETURN DATE AND EXECUTION DEADLINE

The warrant does not specify a return date or compliance deadline in its operative provisions. While the affidavit references a 14-day production window in Attachment B, the warrant face page contains no execution deadline. Texas Code of Criminal Procedure Article 18.06 requires that a search warrant be executed and returned to the magistrate within a specified period. The absence of a return date is procedurally irregular and may indicate the warrant was not properly reviewed. RECOMMENDED ACTION: Flag for procedural review.

RED FLAG #5 — PROBABLE CAUSE / NEXUS INSUFFICIENCY

The affidavit establishes probable cause with respect to approximately 34 accounts (paragraph 14) but uses this as a basis to request records for all 340,000 estimated Texas users of NexaCloud. The logical nexus between the identified accounts and the general Travis County user population is not established. Courts have consistently held that probable cause to search specific accounts does not create probable cause to search an entire user database. See, e.g., *United States v. Galpin*, 720 F.3d 436 (2d Cir. 2013). RECOMMENDED ACTION: Produce only the 34 identified accounts pending further legal review.

OVERALL RECOMMENDATION: Do not produce any records in response to this warrant without review by Senior Analyst and outside counsel. This warrant presents multiple grounds for a motion to quash and potential civil liability under ECPA if complied with in full. Route immediately to: Senior Analyst → Legal Counsel → Outside Counsel (ECPA specialist).

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